

Application of
Militia Acts
to yeomanry.

1. The enactments relating to the general militia shall apply to all members of the yeomanry receiving commissions or enlisted after the passing of this Act as if references therein to the militia and members thereof were references to the yeomanry and members thereof, subject to the following modifications, namely:—

(a.) The provisions with respect to preliminary training shall not apply;

45 & 46 Vict.
c. 49.

(b.) For the period of annual training specified in section sixteen of the Militia Act, 1882, shall be substituted a period of not less than fourteen nor more than eighteen days in every year, and for the period of fourteen days referred to in sections twenty-seven and twenty-eight of the same Act shall be substituted a period of ten days.

Annual
training of
militia
artillery.

2. The period of annual training for militiamen enlisted after the passing of this Act, and for the time being serving in the mobile militia artillery, shall be such period, not exceeding eighty-four days, as may be prescribed under the Militia Act, 1882.

Short title.

3. This Act may be cited as the Militia and Yeomanry Act, 1901.

CHAPTER 15.

An Act to enable His most gracious Majesty to make an Addition to the Royal Style and Titles in recognition of His Majesty's dominions beyond the seas.

[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Power to make
addition to
style and title
of Crown.

1. It shall be lawful for His most gracious Majesty, with a view to the recognition of His Majesty's dominions beyond the seas, by His Royal Proclamation under the great seal of the United Kingdom issued within six months after the passing of this Act, to make such addition to the style and titles at present appertaining to the Imperial Crown of the United Kingdom and its dependencies as to His Majesty may seem fit.

Short title.

2. This Act may be cited as the Royal Titles Act, 1901.

CHAPTER 16.

An Act for the acquisition of certain land, near the National Gallery in London, and for purposes connected therewith. [17th August 1901.]

WHEREAS it is expedient that the Commissioners of Works (in this Act called the Commissioners) should be empowered to acquire certain lands and buildings near the National Gallery, and situated in the parish of Saint Martin-in-the-Fields, in the county of London :

And whereas those lands and buildings cannot be acquired without the authority of Parliament :

And whereas duplicate plans (in this Act referred to as the deposited plans) describing the situation of the land proposed to be acquired, with the houses and buildings thereon, with a book of reference thereto (in this Act referred to as the deposited book of reference), containing the names of the owners and lessees, or reputed owners and lessees, and of the occupiers thereof, have been deposited with the clerk of the peace for the county of London :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The Commissioners may purchase and acquire for the purposes of this Act all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to purchase land.

2. For the purpose of the purchase and acquisition of land under this Act the Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement) shall, subject to the provisions of this Act, be incorporated with this Act with the following exceptions and modifications :—

- (a.) The provisions relating to the sale of superfluous land and access to the special Act and section one hundred and thirty-three of the Lands Clauses Consolidation Act, 1845 (relating to land tax and poor rate), shall not be incorporated with this Act : Incorporation of Lands Clauses Acts.
- (b.) In the construction of this Act and of the incorporated Acts, this Act shall be deemed to be the "special Act" and the Commissioners shall be deemed to be the "promoters of the undertaking" :
- (c.) The bond required by section eighty-five of the Lands Clauses Consolidation Act, 1845, shall be under the common seal of the Commissioners and shall be sufficient without the addition of the sureties mentioned in that section :
- (d.) All claims for compensation made upon the Commissioners under this Act, or any Act incorporated herewith shall, if the person claiming has no greater interest in the land in respect

of which compensation is claimed than as tenant from year to year or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made, be determined in manner provided by section one hundred and twenty-one of the Lands Clauses Consolidation Act, 1845.

Land tax.

59 & 60 Vict.
c. 28.

3.—(1.) Any land tax assessed on the first day of January one thousand nine hundred and one on any part of the land acquired by the Commissioners of Works for the purposes of this Act shall, as from the date of acquisition, be deemed to have been redeemed at the price and in accordance with the conditions provided by the Finance Act, 1896, and the Land Tax Acts as therein defined, and after the date of acquisition no sum shall be assessed or charged in respect of land tax on any part of the land so acquired.

(2.) The Commissioners of Inland Revenue shall grant a certificate of exoneration from assessment to land tax of the lands so acquired, and that certificate shall be registered by the officer appointed for the registry of contracts for the redemption of land tax.

Extinction of
rights of way
and other
easements.

4.—(1.) All rights of way, rights of laying down or of continuing any pipes, sewers or drains on, through or under any of the land acquired by the Commissioners under the provisions of this Act, and all other rights and easements in or relating to that land, shall be extinguished, and all the soil of those ways and the property in the pipes, sewers and drains shall vest in the Commissioners.

(2.) Provided that any persons may recover from the Commissioners such compensation (if any) as they may be entitled to under any of the provisions of the Lands Clauses Acts for any rights or property of which they may be deprived in pursuance of this section, and the amount of that compensation shall be determined in manner provided by the Lands Clauses Acts as modified for the purpose of their incorporation with this Act.

Saving for
County
Council.

5. Nothing in this Act shall affect any rights or jurisdiction of the London County Council or the Westminster City Council in relation to any sewers, drains or watercourses.

Power to enter
on lands.

6. The Commissioners and their surveyors, officers and workmen may at all reasonable time in the daytime, on giving twenty-four hours' notice in writing, enter on any of the land which the Commissioners are authorised to acquire under this Act for the purpose of surveying or valuing the land.

Protection of
works of gas,
water and
electricity
companies.

7.—(1.) Where, in the removal or pulling down of any buildings or in raising or lowering the ground of any street or way for the purpose of this Act, it is necessary to raise, sink or otherwise alter the position relatively to the surface of the ground of any pipe, wire or other apparatus, laid down or used by any gas, water or

electricity company, or connected with any house or building for the supply of gas, water or electricity,

- (a) one month's notice shall be given to the company previously to the commencement of any such work; and
- (b) the work shall be executed to the reasonable satisfaction of the engineer of the company, or, in case of difference, of an engineer to be selected by the Board of Trade; and
- (c) every such work shall be so executed as to cause as little inconvenience as circumstances will admit to the company; and
- (d) the Commissioners shall make compensation to the company for all loss or damage, if any, which may be occasioned by the execution of any of the works authorised by this Act.

(2.) For the purposes of this section the expression "gas, water or electricity company" includes any person or body of persons supplying gas, water or electricity.

8.—(1.) All expenses incurred by the Commissioners under this Act shall be defrayed out of money provided by Parliament.

Provision as to expenses, &c. of Commissioners. 15 & 16 Vict. c. 28.

(2.) The provisions of the Commissioners of Works Act, 1852, and any Act amending that Act, shall apply in the case of the acquisition of land by the Commissioners under this Act in like manner as in the case of a purchase under that Act, and any notice, summons, writ or other document required to be given, issued or signed by or on behalf of the Commissioners may be given, issued or signed by the secretary or assistant secretary of the Commissioners and need not be under their common seal.

9. If any person wilfully obstructs any person acting under the authority of the Commissioners in the lawful exercise of the powers vested in them under this Act, he shall for each offence be liable, on summary conviction, to a fine not exceeding five pounds.

Penalty for obstructing Commissioners.

10. This Act may be cited as the National Gallery (Purchase of Adjacent Land) Act, 1901.

Short title.

CHAPTER 17.

An Act to amend the Law relating to Lunatics in Ireland.
[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) The Lord Lieutenant may, in addition to his power of absolute discharge, also discharge any criminal lunatic conditionally, that is to say, on such conditions as to the duration of such discharge and otherwise as the Lord Lieutenant may think fit.

Conditional discharge of criminal lunatics.